

Security Marking (select from the drop-down list)

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

NOTE: If a Justification was approved for the preceding acquisition, a copy of the approved Justification for the predecessor action must be included in the staff package for approval of the instant Justification. This applies to Justification staff packages that are submitted for review and approval at a level above the contracting officer. The predecessor Justification will be used as a reference document by the approving official.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined in the [AF Bridge Action Reduction Plan](#)? ☐ Yes ☒ No

Funding level for this acquisition: ☒ >SAT and ≤ \$750K ☐ > \$750K and ≤ \$15M

Contracting Activity: 36 CONS/PKB

Purchase Request / Local ID Number: 2024-190

Program / Project (and PE, if applicable):

Program Type (PEO or Other Contracting): Other Contracting

Authority: ☐ AFFARS 5313.501 - 10 U.S.C. 2302b, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)

☒ AFFARS 5313.501 - 10 U.S.C. 2304a, Special Emergency Procurement Authority (41 U.S.C. 1903)

Estimated Contract Cost (including options): \$32,679.83

Justification Type: ☐ Class ☒ Individual

COORDINATION ([AFFARS 5306.304\(a\)](#))

[Sign and Save Procedure](#)

** The text in the signature blocks below is editable, including the title.

** To remove a row, click the "X" next to the signature block. **CAUTION:** Once removed, it can only be restored by downloading the [BLANK FORM](#) again.

Date 25 Mar 2025	Requiring Activity Preston J Wade 554 RHS/FTX / DSN 315-362-4810	Signature	X
Date 08 Apr 2025	Contracting Officer Lee Michael D. Rosario 36 CONS/PKB / 366-4257	Signature	X
Date 8 April 2025	Local Legal Reviewer Marlyn T. Aguilar, Attorney Advisor 36 WG/JA; 671-366-6039	Signature	X

APPROVAL ([AFFARS 5306.304\(a\)](#))

Date 09 Apr 2025	Chief of the Contracting Office (COCO) FRANCIS S. NAVARRO, Lt Col, USAF Commander, 36th Contracting Squadron	Signature
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(See "[Specific Guidance for Completing this Template](#)" below.)

I. Contracting Activity.

36 CONS/PKB

II. Nature and/or description of the action being processed.

This acquisition is for four (4) Burner Training Tables, one (1) Burner Drain Table, and five (5) Heat Treated Crates to meet mission requirements. This Burner Training Table is essential for training with hazardous material in a safe and controlled environment. The Drain Table is required to drain any Kerosene or fuel from the Burner Training Table prior to performing any maintenance or training. The heat treated crates are mandated because of a reservoir of fuel left in the burner table after required testing performed by the manufacturer. Based on market research, Babington Technology, Incorporated is the sole manufacturer of the Babington Airtronic Burner Table, and no other known sources provide a comparable product that meets the safety requirements and specifications necessary to conform with agency needs.

The unique capabilities required of these Burner Training Tables, include its mandatory adherence with the existing Airtronic Burners by the means of unique hookups and connections and required characteristics to comply with safety regulations, making the Babington Technology Incorporated burner table the only viable solution. The procurement strategy utilized will be a sole-source (brand-name) acquisition in accordance with FAR 6.302-1, with the justification that only one responsible source will conform with agency needs.

III. Description of supplies/services required to meet agency needs.

This requirement is for four (4) Burner Training Tables, one (1) Burner Drain Table, and five (5) Heat Treated Crates to support mission-critical efforts for safe training involving hazardous material. Based on conducted market research BabingtonTechnology, Incorporated is the only known manufacturer capable of meeting regulatory requirements. The mandatory specifications required for the Burner Training Tables and Burner and Burner Drain Table include:

- Stable and robust burner stands integrated into the table design to securely support the Babington Airtronic Burner during firing operations and flame function checks
- Stands must accommodate varying burner weights while maintaining stability during high-temperature operations.
- Built-in 5-gallon fuel can, built-in fuel can adapters, fuel lines, and integrated burner stands.
- Construction of 16-gauge stainless steel to ensure durability and resistance to fuel- related corrosion.
- All components connected to the Burner Training Tables, Drain Table, and must be serviceable and replaceable without the need for proprietary tools.

These tables made by Babington Technology, Incorporated are the only type of tables that can be used to service and train on the Airtronic burners.

IV. Statutory authority permitting other than full and open competition.

This acquisition is pursuant under 10 U.S.C 3204(a)(1), permitting a sole-source procurement strategy when the required commodities or services are only solely available from one responsible source, or limited sources, contingent on no other goods or services meeting agency needs. Market research and technical evaluations indicate that the Babington Technology, Incorporated Burner Table, manufactured

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by Babington Technology, Incorporated is the only known burner table to combine compatibility with existing equipment, durable anti-corrosive material, and mandatory safety requirements involved with handling of hazardous materials. Similar burner tables available on the commercial market lack at least one of the following qualities.

- Structural/Durability: Does not meet physical material related structural requirements.
- Conformity: Does not conform to the existing Airtronic Burners by the means of connections, adapters or fuel related hookups.
- Safety: Does not provide ample safety measures to promote safe handling.
- Servicing: Does not allow for servicing and maintenance to be performed by members of Andersen Air Force Base.

As no other known vendor produces a burner table that satisfies all these requirements without additional modifications or supplemental purchases, this procurement qualifies for sole-source acquisition under 10 U.S.C. 3204(a)(1).

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

Babington Technology, Incorporated is the sole vendor capable of satisfying the following specifications: Compliance with the existing Babington Technology, Incorporated Airtronic Burners:

- Babington Technology, Incorporated is the only vendor to include a direct hookup for fuel line assembly to three burners per table.
- Babington Technology, Incorporated is the only vendor capable of providing the recessed 110v power strip with at least three connections required to comply with agency needs.
- Babington Technology, Incorporated is the only vendor able to perform maintenance and operations of the Airtronic burner, which are unique to Babington Technology, Incorporated.
- Babington Technology, Incorporated is the only vendor capable of securely holding the Babington Technology, Incorporated Airtronic Burner and all associated equipment during operation.
- Babington Technology, Incorporated is the only vendor to keep the Government from incurring significant additional costs in reoccurring maintenance and servicing fees thus eliminating any prolonged service obligations.
- Members on Andersen Air Force base are trained and certified to service Babington Technology training tables, ensuring servicing and operation of said tables to remain an inherently Government function without the possibility of accruing significant service or maintenance charges.
- Babington Technology Incorporated is the singular source able to provide equipment capable of holding the existing Airtronics burners in a safe and secure manner posing no risk to the operator or maintainer.

There are no other brands that can satisfy this requirement because Babington Technology, Incorporated specifically makes these tables to comply, service and train on the existing Babington Technology, Incorporated Airtronic burners. Babington Technology, Incorporated confirmed they are the sole manufacture of these burners, and no other source is authorized as a reseller of both the Babington Technology, Incorporated Training Table and the Babington Technology, Incorporated Airtronic burner.

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

1. Conducted market and industry analysis methods include the following:

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- Searches through Google, Industry catalogs, and various consumer websites.
- An email was generated informing thirteen (13) potential vendors found on the DynamicSmall Business Database through NAICS code 333310 informing them of the potential opportunity, this Request for Information resulted in no responses or interested vendors.
- A Sources Sought was posted through the Government-wide Point of Entry SAM.gov which received one response from BHPE LLC as an interested vendor but failed to provide a quote or further information on request. However, BHPE is unable to provide the requested equipment based on the statement from Babington Technology listed directly below.
- Babington Technology, Incorporated confirmed in writing that Burner Maintenance and Training Table is available only from Babington Technology, Incorporated. The product was developed by Babington Technology, Incorporated for use with the Airtronic burner, which is also only available from Babington Technology, Incorporated.

2. Conclusion:

- Despite diligent market research, no other known vendor produces a burner table that meets all safety compliance, compatibility, and material specifications/requirements without additional modifications or supplementary purchases.
- Babington Technology, Incorporated remains the only responsible source capable of fulfilling the requirement in its entirety, justifying the use of 10 U.S.C. 3204(a)(1) for this sole-source acquisition.

VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The acquisition of a Burner Table, specifically by Babington Technology, Incorporated, is deemed essential for the training environments for 554 RHS. This determination is based on the critical role this equipment plays in maintaining mission readiness. The absence of this equipment would result in a significant degradation of training capabilities, directly impacting the unit's ability to fulfill its mission.

Market research revealed a comparable burner table procurement under contract number VA664A00546. This contract, for a similar burner table, totaled \$3,691.69. The proposed acquisition from Babington Technology, Incorporated, the sole provider of this specific training table model, totals \$3,405.93. This represents a cost savings of \$285.76, or 8.05%, compared to the previously awarded contract for a similar product.

Another similar table is available, but for a lower price, and it lacks crucial safety features and connections specifically outlined in Section V of the requirements. These missing components, more than just minor details, represent a significant compromise in functionality and safety, directly impacting the table's overall value. The 12.9% price difference, which equates to \$412.77, is a small price to pay considering the Babington Technology Incorporated Training Table meets all safety standards, offers seamless integration with existing equipment through its comprehensive hookups, and ensures full compatibility with current training protocols. Investing in the Babington Technology table prioritizes both safety and functionality, ultimately proving to be a more valuable and responsible long-term solution.

Based on the criticality of the Babington Technology, Incorporated Burner Table to 554 RHS' mission, the lack of alternative sources for this specific model, and the cost-effectiveness of the proposed acquisition in comparison to similar procurements, the Contracting Officer determines that the anticipated cost of \$3,405.93 is fair and reasonable.

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VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Reference Section VI for an in depth description of all conducted market research.

IX. Any other facts supporting the use of Other Than Full and Open Competition.

Not Applicable.

X. List of any sources that expressed, in writing, an interest in the acquisition.

BHPE LLC. (Reference Section VI.)
Babington Technology, Incorporated.

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

Not applicable. (the agency is unable to overcome any of the barriers to competition listed in Section V.)

XII. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XIII. Certification by the technical/requirements personnel.

As evidenced by my signature(s) above, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

☐ Remove the Guidance pages below.

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Specific Guidance for Completing this Template

I. Contracting Activity. ([FAR 6.303-2\(b\)\(1\)](#))

Fully identify the contracting agency and organizational activity responsible for the proposed contracting action.

II. Nature and/or description of the action being processed. ([FAR 6.303-2\(b\)\(2\)](#))

State whether the action will be awarded as a new contract or by modification to an existing contract (identify contract number) and identify the type contract planned ([FAR 12.207](#) and [DFARS 212.207](#)).

An individual Justification cannot be used to support more than one contract irrespective of the quantities or the dollar value stated therein. If a proposed contract will contain unpriced options (including NTE prices), those options must be supported by a separate Justification prior to option exercise or the Justification supporting the basic contract must be a Class Justification. For Class Justification situations (covers more than one contract) where the number of contracts in the class can be identified: (1) Provide a brief general description of actions; (2) identify the supplies and services that are being acquired; and (3) for each contract in the class identify the contractor, estimated value, type of contract and rationale for contract length, and estimated award date. Where the same information applies to more than one contract within the class, it need only be stated one time.

III. Description of the supplies/services required to meet agency needs. ([FAR 6.303-2\(b\)\(3\)](#))

Specifically describe the supplies and/or services to be acquired, the total estimated value of the acquisition - including options (provide cost estimate by year and, for class Justifications, by contract action), and the estimated delivery dates/periods of performance. If commodities are being procured, provide quantities. All contract line items (CLIN) -- e.g., technical data, support equipment, support services, etc. -- should be listed. If all of the ancillary requirements associated with a particular item are not specifically described in the Justifications, those ancillary requirements cannot be included in the resulting contract and would require a second Justification. Also, state the type of appropriation (e.g., 3010, 3400) that will be used to fund each requirement listed.

If approval for more than one fiscal year requirement is needed, give the rationale for this request. Generally, the scope of these actions is limited to current requirements only, so that actions may be taken to facilitate competition for out-year requirements.

In some cases, there are no feasible actions that could develop future competition, and it is reasonable to seek approval for more than one fiscal year's requirements.

For ID/IQ or requirements contracts, use the maximum dollar value of the total estimated orders as the estimated Justification dollar value.

IV. Statutory authority permitting other than full and open competition. ([FAR 6.303-2\(b\)\(4\)](#))

- ☐ AFFARS 5313.501 - 10 U.S.C. 2302b, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)
 - ☐ AFFARS 5313.501 - 10 U.S.C. 2304a, Special Emergency Procurement Authority (41 U.S.C. 1903)
-

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority). ([FAR 6.303-2\(b\)\(5\)](#))

Provide, in narrative form, a detailed explanation supporting and clearly relating to the conditions described by the FAR for using the particular authority cited. This section is normally the most detailed part of the justification as the essence of the justification is presented here. For acquisitions that include both supplies and services, separately justify the use of the authority for the services and supplies.

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*Contracting without providing for full and open competition **shall not** be justified on the basis of lack of advance planning by the requiring activity or concerns related to the amount of funds available (e.g., funds will expire) ([10 U.S.C. 2304\(f\)\(4\)](#)).*

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable. ([FAR 6.303-2\(b\)\(6\)](#))

Describe all efforts taken (or to be taken) to ensure that offers are solicited from as many potential sources as practicable under the circumstances. Although Market Research is covered in Section VIII, the information in Section VI should correlate with the Market Research described in Section VI. The following issues should be addressed in this paragraph:

Sources Sought Synopsis (used as part of market research). *If a sources sought synopsis was issued, state the date the synopsis was issued and a brief description of its content. If any responses were received, describe in detail the results of the screening process and the rationale for determining the unacceptability of any synopsis respondents. Reference [FAR 13.105](#), Synopsis and Posting Requirements.*

Other Actions. *In this paragraph, discuss any other actions taken or planned to facilitate competition for **this** acquisition. The discussion should include actions tried or considered even if the actions were unsuccessful. If the efforts were unsuccessful, so state and describe why.*

Qualifying Country Sources. *If qualifying country sources have expressed interest, but are to be excluded, provide supporting rationale.*

VII. Determination by the Contracting Officer that the anticipated cost to the government will be fair and reasonable. ([FAR 6.303-2\(b\)\(7\)](#))

Include a statement by the contracting officer that the anticipated cost will be considered fair and reasonable and provide the basis for this determination. The steps that will be taken to ensure the final contract price will be fair and reasonable are also described here. Describe the extent of cost or price analysis anticipated including the requirements for certified cost or pricing data, technical evaluations, and audits.

VIII. Description of the market research conducted and the results, or explain why market research was not conducted. ([FAR 6.303-2\(b\)\(8\)](#))

Generally, some form of market research should be conducted. Discuss any market research conducted pursuant to [FAR Part 10](#) and describe results of that research. Market research is any effort undertaken to determine if sources capable of satisfying the agency's requirements exist and to determine if commercial items or non-developmental items are either available or can be modified so that they will satisfy the agency's needs. Market research should be focused not only on identifying alternate sources, but also on alternate equipment or substitutes that might fulfill the Government needs with only minor modification. Regardless of the approach used, the results should provide a high level of confidence that no other qualified sources exist.

When other exceptions from the requirement to obtain full and open competition are relied upon, the market research might be limited to an examination of the acquisition history and experience with the marketplace under previous acquisitions for the same or similar items.

If no market research was conducted, so state and provide the rationale.

IX. Any other facts supporting the use of Other Than Full and Open Competition. ([FAR 6.303-2\(b\)\(9\)\(i\)](#))

Provide any other facts supporting the use of other than full and open competition, including an explanation of why technical data packages, specifications, engineering descriptions, statements of work, statements of objectives, or purchase descriptions suitable for full and open competition have not been developed, are not being developed, are not being used, or are not available.

X. List of sources, if any, that expressed interest in the acquisition. ([FAR 6.303-2\(b\)\(10\)](#))

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If a sources sought synopsis was done and all interested sources are included in Section VI, it is acceptable to state, "See Section VI above."

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required. ([FAR 6.303-2\(b\)\(11\)](#))

*Describe any actions taken or to be taken to foster competition for **future** acquisitions of the supplies or services being acquired. Describe potential actions that could be taken to remove the barriers to competition that have been identified in the justification and include a milestone schedule, where available, for accomplishing these actions. For example, if a follow-on competitive acquisition is planned, so state and provide the planned award date, or state that the Government will attempt to acquire rights in technical data and computer software sufficient to compete follow-on acquisitions as a priced option in the contract action that is the subject of this Justification, or (if applicable) state how the Government intends to challenge nonconforming markings on technical data and computer software delivered to it under previous contracts so those markings can be removed in order that the technical data and computer software may be used in support of a follow-on competitive acquisition, or describe plans to qualify additional sources.*

Address efforts to ensure competition for future spare parts and maintenance in support of systems or equipment covered by the justification, even when these acquisitions will be accomplished by other organizations. Include a discussion on available breakout data.

If no actions are planned, so state and provide reasons. If approval is sought for more than one year, explain why a sole source effort is required for the planned time duration.

For a non-competitive follow-on acquisition to a previous award for the same supply or service supported by a Justification citing the same authority, include a discussion of the actions planned to overcome barriers to competition established in the previous justification, the status of those actions, and the results of those actions. The approval authority shall determine whether the planned actions were completed. If the planned actions were not completed, the justification for the follow-on acquisition shall be approved by the approval authority one-level above the approval authority for the previous justification (see [FAR 13.501\(a\)\(2\)](#)). If the previous justification was approved by the Senior Procurement Executive (SPE), the approval remains at the SPE level.

[\[DFARS 213.501\(a\) and DFARS PGI 206.304\(a\)\(S-70\)\(ii\)\]](#)

XII. Certification by the Contracting Officer. ([FAR 6.303-2\(b\)\(12\)](#))

As evidenced by his/her signature, the contracting officer has determined this document to be both accurate and complete to the best of his/her knowledge and belief.

XIII. Certification by the technical/requirements personnel. ([FAR 6.303-2\(c\)](#))

As evidenced by their signatures, the technical and/or requirements personnel have certified that any supporting data contained herein, which is their responsibility, is both accurate and complete.

Do You Need to "REDACT" Text?

This template is interactive and has special features. In its current state, it cannot be redacted. In order to redact any portion of this template, you must first convert it to a normal PDF file. [Click here](#) for instructions.